

24TRCV00194 24TRCV00194

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Case Number: 24TRCV00194 Hearing Date: August 4, 2026 Dept: M

LOS ANGELES SUPERIOR COURT – SOUTHWEST DISTRICT

Honorable Amy N. Carter

Department M

Tuesday – August 4, 2026

Calendar No.

PROCEEDINGS

Clarissa

Lee Blakes v. American Honda Motor Company, Inc., et al.

24TRCV00194

1.

American Honda

Motor Company, Inc.'s Motion for a Protective Order and Request for Sanctions

TENTATIVE RULING

American Honda Motor Company, Inc.'s Motion for a

Protective Order and Request for Sanctions is granted, in part, and denied, in part.

Background

Plaintiff filed the Complaint on January 19, 2024.

Plaintiff filed the First Amended Complaint on August 9, 2024. Plaintiff alleges the following facts. Plaintiff alleges that her 2021 Honda Accord suffers from various defects including sensing defects, electrical defects, brakes defects, engine defects, transmission defects, and other defects and non-conformities.

Plaintiff set forth causes of action under the Song-Beverly Act, Breach of Warranty, and a cause of action for Fraudulent Inducement- Concealment.

Motion for a Protective Order

Code Civ. Proc., § 2034.250 states:

“(a) A party who has been served with a demand to exchange information concerning expert trial witnesses may promptly move for a protective order. This motion shall be accompanied by a meet and confer declaration under Section 2016.040.

(b) The court, for good cause shown, may make any order that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. The protective order may include, but is not limited to, one or more of the following directions:

(1) That the demand be quashed because it was not timely served.

(2) That the date of exchange be earlier or later than that specified in the demand.

(3) That the exchange be made only on specified terms and conditions.

(4) That the production and exchange of any reports and writings of experts be made at a different place or at a different time than specified in the demand.

(5) That some or all of the parties be divided into sides on the basis of their identity of interest in the issues in the action, and that the designation of any experts as described in subdivision (b) of Section 2034.210 be made by any side so created.

(6) That a party or a side reduce the list of employed or retained experts designated by that party or side under subdivision (b) of Section 2034.210.

(c) If the motion for a protective order is denied in whole or in part, the court may order that the parties against whom the motion is brought, provide or permit the discovery against which the protection was sought on those terms and conditions that are just.

(d) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order under this section, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

Pursuant to Evidence Code § 723, “[t]he court may, at any time before or during trial of an action, limit the number of expert witnesses to be called by any party.”

Defendant moves “for an order (1) imposing a protective order that Plaintiff must reduce the list of employed or retained experts to a single witness; and (2) imposing monetary sanctions of \$2,680 against Plaintiff and her counsel[.]” (Notice of Motion, p. 2, lines 5-8). The motion is made on the grounds that “Plaintiff designated Ioannis Kanellakopoulos, PhD (“Kanellakopoulos”), Randall Bounds (“Bounds”), and Chris Morales (“Morales”) (collectively, “Plaintiff’s Experts”), each of whom will purportedly offer testimony on the same subject matters.” (Id. at p. 2, lines 12-14).

Meet and Confer

Defendant filed a meet and confer declaration in sufficient compliance with CCP § 2034.250(a). (Decl., Patrick E. Michela, ¶¶ 4-6).

Motion for Protective Order

Pursuant to Evidence

Code § 723 and Code of Civil

Procedure § 2034.250(a), Defendant's motion for protective order is granted.

The number of expert witnesses of Plaintiff are cumulative. Plaintiff is ordered to reduce the list of employed or retained witnesses to a single witness.

In Plaintiff's opposition,

Plaintiff does not appear to contest that there are three experts designated to testify on the same issue. Instead, Plaintiff argues that she has a "right to list up to three experts as alternatives based on trial availability. As such, the listing of three experts is not duplicative but rather alternative.

Plaintiff shall call only one expert at trial once she learns which one is available. Furthermore, defendant did not request deposition dates and for that reason, Plaintiff has not determined which expert to testify." Opposition, p. 2, lines 3-7). Plaintiff also argues that the motion and meet and confer attempts were not properly served.

The Court notes that while

Plaintiff may have the right to designate multiple expert witnesses and call one of them, at this point, the trial date of October 20, 2026 is fairly imminent. "[A] trial court has discretion to limit the number of expert witnesses in any case." Ramsey v. Marutamaya Ogatsu Fireworks Co. (1977) 72 Cal.App.3d 516, 532. Defendant has met its burden to show that it is entitled to a protective order because three expert witnesses on the same issue is cumulative. At this point, Plaintiff can choose which expert is the proper expert to designate and present for deposition and call at trial.

Thus, Defendant's motion for protective order is granted.

Sanctions

Defendant's request for monetary sanctions is denied. The Court determines that Plaintiff acted with substantial justification and other circumstances exist to make the imposition of sanctions unjust.

Defendant is ordered to give notice of this ruling.